

Kamaluddin v. State of U.P. And 4 Others

Allahabad High Court · Division Bench · 8 December 2020 · Writ - C No. 20306 of 2020 · **Writ petition disposed of; undated assessment (Annexure-11) quashed and remitted to the Assessing Officer for a speaking and reasoned order within four weeks**

HEADNOTE

Where the assessing officer, after a prior writ directing him to consider the consumer's objections to a provisional assessment and to grant a personal hearing, passes an undated assessment that does not consider those objections and assigns no reasons, the order cannot be sustained. The Division Bench quashed the undated assessment (Annexure-11) and remitted the matter to respondent no. 5, the Assessing Officer, to consider afresh and pass a speaking and reasoned order within four weeks. Counsel for the Power Corporation could not establish that any reason had been assigned and himself sought remand. The petitioner had invoked Para 6.8 of the U.P. Electricity Supply Code, 2005 and Ashok Kumar (2008 (6) ADJ 660). The Court did not decide the quantum of the demand, restoration of supply, or the other notices and recovery citation.

FACTUAL SUMMARY

Kamaluddin petitioned to quash a notice dated 16 April 2018, a demand dated 7 January 2019 of Rs. 33,98,943, a permanent disconnection notice dated 20 September 2019, a reminder posted 5 December 2019, and a recovery citation dated 17 March 2020, and to restore supply. Writ-C No. 4897 of 2018 had on 8 February 2018 quashed an earlier provisional assessment, the department stating that a fresh provisional would issue, objections would be invited, and a final assessment made. After a fresh provisional dated 16 April 2018 the petitioner objected on 1 May 2018 under Section 126(3) of the Electricity Act, 2003. Writ-C No. 2903 of 2019 then directed the Executive Engineer to decide that objection after opportunity and a personal hearing under Clause 8.2 of the U.P. Supply Code, staying coercive action on the 7 January 2019 demand for one month. The undated assessment at Annexure-11 followed. Counsel for the Power Corporation could not show that it assigned any reason.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2

An assessment that does not consider the consumer's objections and assigns no reasons is quashed and remitted for a speaking order

QUESTION

Can an undated assessment passed after a prior writ directing consideration of objections and a personal hearing stand, where the objections are not considered and no reasons are assigned?

HOLDING

No. On perusal of the record the undated order (Annexure-11) did not consider the petitioner's objection dated 1 May 2018 and could not be sustained. The impugned order was quashed. The matter was remitted to respondent no. 5, the Assessing Officer, to consider afresh and pass a speaking and reasoned order within four weeks. Counsel for the Power Corporation could not establish that any reason had been assigned and submitted that the matter should be remitted for a fresh order after considering the 1 May 2018 objections. The writ petition was disposed of. ¶ [order of 8.12.2020](#)

QUALIFIER

The Court did not examine the merits of the Rs. 33,98,943 demand or the disconnection and recovery notices.

FLAG The 8.12.2020 order does not cite a clause number. The petitioner invoked Para 6.8 (speaking order) and Ashok Kumar, 2008 (6) ADJ 660 (DB). The quoted 29.01.2019 order in the same consumer's Writ-C No. 2903 of 2019 had directed decision of the 1.5.2018 objection under Section 126(3) with personal hearing under Clause 8.2. Keyed to 8.2 as the clause that prior order had applied to this assessment; it could equally be 6.8 on the petitioner's 2020 argument.

assessment-must-engage-objections-with-reasons The undated assessment (Annexure-11) did not consider the petitioner's objection dated 1 May 2018 and assigned no reasons. It was quashed. Counsel for the licensee could not show that any reason had been given. Lead authorities: *Ashok Kumar and others v. State of U.P. and others*.

¶ order of 8.12.2020

assessment-order-quashed-and-remitted-for-hearing The undated assessment was quashed and remitted to the Assessing Officer to consider afresh and pass a speaking and reasoned order within four weeks. ¶ order of 8.12.2020

assessment-provisional-objection-speaking-order The petitioner invoked Para 6.8 as requiring a speaking order on objections to the provisional assessment dated 16 April 2018. The Court required a speaking and reasoned order on remand without numbering the clause. Lead authorities: *Ashok Kumar and others v. State of U.P. and others*.

¶ order of 8.12.2020

speaking-order-required-for-theft-assessment The 29.01.2019 order in this consumer's earlier writ had directed a personal hearing under Clause 8.2. The 2020 assessment passed pursuant to that direction was quashed for want of reasons and remitted for a speaking order. ¶ order of 8.12.2020

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE ASSESSMENT OF RS. 33,98,943

Left to the fresh speaking order on remand. ¶ order of 8.12.2020

NOT DECIDED — WHETHER THE DEMAND IS UNAUTHORISED USE UNDER CLAUSE 6.8 OR THEFT UNDER CLAUSE 8.2

The 2019 order directed a Clause 8.2 hearing and Section 126(3) decision of the objections. The 2020 petitioner argued Para 6.8. The Court did not characterise the demand. ¶ order of 8.12.2020

NOT DECIDED — RESTORATION OF SUPPLY, AND THE VALIDITY OF THE NOTICE DATED 16.04.2018, DEMAND DATED 07.01.2019, PERMANENT DISCONNECTION NOTICE DATED 20.09.2019, REMINDER POSTED 05.12.2019, AND RECOVERY CITATION DATED 17.03.2020

Prayed as reliefs (i)–(iii). Only the undated assessment at Annexure-11 was quashed. Those other instruments and restoration were neither granted nor refused. ¶ order of 8.12.2020

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar and others v. State of U.P. and others</i> 2008 (6) ADJ 660 (DB) Allahabad High Court	Cited by the petitioner for the requirement that the assessing officer pass a speaking order in compliance with Para 6.8 of the Electricity Supply Code, 2005.		Petitioner	Relied on